AC 47423

MICHELLE BENIVEGNA	:	STATE OF CONNECTICUT
v.	:	APPELLATE COURT
DONNA RICHO, ET AL.	:	APRIL 24, 2024

MOTION TO DISMISS DEFENDANT'S APPEAL TO THE APPELLATE COURT

Pursuant to Rules of Appellate Practice § 66-8, the Plaintiff-Appellee, Michelle Benivegna, respectfully moves to dismiss Defendant's interlocutory appeal to the Appellate Court from the trial court's denial of Defendant's special motion to dismiss. The Appellate Court is without subject matter jurisdiction. The trial court's denial of Defendant's special motion to dismiss pursuant to §52-196a is not, under the facts of this case, an appealable final judgment pursuant to statutory law or the second prong of *Curcio*. Accordingly, this court is without subject matter jurisdiction to hear this appeal.

1. BRIEF HISTORY OF THE CASE:

This action arises out of multiple defamatory comments and posts made by the Defendants on social media stating that Plaintiff was personally involved with the mayor and provides favors to the Mayor of East Haven to secure and keep her job. These statements impacted both the Plaintiff's personal and professional reputation and constitutes defamation per se. The Defendants have also published that the Plaintiff was having an affair with the Mayor of East Haven. The Defendants' comments were crude, unnecessary and were made maliciously to humiliate and demean the Plaintiff as a woman and as

an employee of the Town of East Haven. The defamatory statements were sexist and abusive. The statements were all untrue.

The Defendants in their postings, while purporting to make political comments with an avowed mission to publish political comments relating to public officials regarding their ethical behavior, consistently engaged in making demeaning, malicious, sexist and misogynistic statements about Michelle Benivegna without regard to the truth or falsity of the statements. The statements were malicious and humiliating. With a long-standing social media presence and group Facebook page called "East Haven Politics," many readers are likely to believe the posts and comments to be true and factually based. The Defendants' comments had no relationship to fair comment or freedom of speech. The statements were malicious, evil and utterly unrelated to free speech.

2. SPECIFIC FACTS RELIED UPON

Well after the time period allotted by law pursuant to Connecticut General Statue § 52-196a, the Defendant, Richard Miller, filed a Special Motion to Dismiss the Plaintiff's Complaint. The Defendant alleged (1) that the Complaint concerns and violates his right to free speech, his right to petition the government, and/or his right of association on a matter of public concern, (2) that it is unlikely that the Plaintiff can prevail in this matter by a fair preponderance of the evidence and (3) that the Plaintiff has lied about not being a public official or public figure. The trial court dismissed the special motion as untimely. The Defendant, Miller, filed this appeal thereafter.

The Defendant's Special Motion to Dismiss was filed pursuant to Connecticut General Statute § 52-196a which provides for the filing of what is termed a "special motion to dismiss" challenging what has been referred to as SLAPP suits. A SLAPP suit is an action designed to limit public comment. Conn. Gen. Stat. § 52-196a provides clearly that the party filing the "special motion" under Conn. Gen. Stat. § 52-196a must do so no later than thirty (30) days after the return date of the Complaint. The Plaintiff's Complaint, dated June 14, 2023, has a return date of July 11, 2023. The Defendant's Special Motion to Dismiss was dated and filed on September 14, 2023. It was filed well outside of the thirty-day window provided in § 52-196a. Conn. Gen. Stat. § 52-196a further provides that the party seeking to file a special motion to dismiss may extend the time period to file such a motion upon showing of good cause. The Defendant here has failed to do so.

3. LEGAL GROUNDS WHICH PLAINTIFF RELIED UPON:

a. The Defendant Failed to File his Special Motion to Dismiss Within the Allotted Timeframe

Connecticut statutory law is very specific on the timeframe in which a special motion to dismiss must be filed. The special motion to dismiss must be filed within thirty (30) days after the return date of the Complaint. It is clear that the Defendant did not file within the statutory requirement. The Complaint was returnable July 11, 2023. Defendant filed their special motion to dismiss on September 14, 2023, sixty-five (65) days after the return date. No extension of time was ever

requested by the Defendant or granted by the Court. As clearly stated, the appeal should be dismissed as the court has not rendered a final judgment and the non-final judgment is not reviewable in that the untimely motion to dismiss is not a colorable motion to dismiss under Conn. Gen. Stat. § 52-196a.

b. The Denial of the Special Motion to Dismiss as Untimely Should Preclude an Interlocutory Appeal Under Conn. Gen. Stat. § 52-196a

In *Smith v. Supple*, 356 Conn. 928 (2023), the Connecticut Supreme Court addressed the appealability of a denial of a special motion to dismiss as an interlocutory appeal. In addressing the issue, the court looked to the statute for guidance. The legislature specifically created the right to an interlocutory appeal upon the separate evaluation of whether the denial of a special motion to dismiss is immediately appealable only pursuant to the second prong of the final judgment test set forth in *State v. Curcio*, 191 Conn. 27 (1987). As an initial matter, "[t]he right of appeal is purely statutory." *Id.* at 30. "It is accorded only if the conditions fixed by statute and the rules of court for taking and prosecuting the appeal are met." *Id.* The legislature's expression of a statutory right to an interlocutory appeal must be expressed directly and clearly within the statute itself. "It is…axiomatic that, except insofar as the legislature has specifically provided for an interlocutory appeal or other form of interlocutory appellate review…appellate jurisdiction is limited to final judgments of the trial court." *Hylton v. Gunter*, 313 Conn. 472. 478 (2014) (citation

omitted) § 52-196a contains a singular reference to an "interlocutory appeal" in subsection d, stating only that the stay of discovery mandated upon the filing of a special motion to dismiss "shall remain in effect until the court grants or denies the special motion to dismiss and any interlocutory appeal thereof.".

The language contained in § 52-196a clearly reveals the legislature's intention to provide for interlocutory appeals relating to special motions to dismiss only upon limited grounds. § 52-196a does not, itself, create a right of interlocutory appeal because the statutory language does not contain an explicit reference to the right to appeal. In recent decisions, our Supreme and Appellate Courts have, in the case of the denial of a motion under Conn. Gen. Stat § 52-196a, held that the right to an interlocutory appeal only exists only from a "colorable" motion to dismiss. Here, there is no dispute that the Defendant's motion was filed outside of the time period prescribed by the statute and therefore, the motion does not present a colorable motion to dismiss without statutory authority to appeal. The Defendant is left with his right to appeal at the conclusion of the case. Defendant loses no substantive rights.

c. An Untimely Motion to Dismiss is Not Colorable Under the Second Prong of *Curcio*.

"It is undeniable that a denial of a motion to dismiss is not ordinarily a final judgment." *Sasso v. Aleshin*, 197 Conn. 87, 90 (1985). "Two situations in which a party can appeal an otherwise interlocutory order: (1) where the order or action terminates a separate and distinct

proceeding, or (2) where the order or action so concludes the rights of the parties that further proceedings cannot affect them." *State v. Curcio*, 191 Conn. 27, 31 (1987). In *Curcio*, the Defendant appealed the denial of his Motion to Quash a court order from the Superior Court. This Court found that since "the denial is not a final judgment, the appeal is dismissed." *Id.* at 28. "The second prong of the *Curcio* test focuses on the nature of the right involved. It requires the parties seeking to appeal to establish that the trial court's order threatens the preservation of a right already secured to them and that that right will be irretrievably lost and the [parties] irreparably harmed unless they may immediately appeal. One must make at least a colorable claim that some recognized statutory or constitutional right is at risk." (Citations omitted; internal quotation marks omitted.). *Chadha v. Charlotte Hungerford Hospital,* 272 Conn. 776, 784–86, 865 A.2d 1163 (2005). Here, no colorable claim can be made as the Defendant, in effect, lost his right to challenge the substance of the Plaintiff's claim because he failed to pursue it within the statutory timeframe[1]. Here, the right no longer exists, as the statutory period with which to file the motion expired. There is no longer a right to enforce. Defendant Miller no longer holds the right to proceed on a special motion to dismiss.[2]

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[1] The Defendant, although losing the right to file a Conn. Gen. Stat. § 52-196a motion, can undoubtedly file other substantive motion such as a motion to strike or a motion for summary judgment well before trial.

[2] The only right he has lost is the ability to file an interlocutory appeal. That right he gave up by failing to file a timely motion under Conn. Gen. Stat. § 52-196a.

In order to satisfy the second prong of the *Curcio* test, "[t]he [appellant] must show that the decision threatens to abrogate a right that he or she then holds." *Blakely*, 323 Conn. at 746. "The right itself must exist independently of the order from which the appeal is taken." *Id.* "Where a decision has the effect of not granting a particular right, that decision, even if erroneous, does not threaten the [party's] already existing rights." *Massachusetts Mut. Life Ins. Co. v. Blumenthal,* 281 Conn. 805, 814 (2007) (citation omitted). Moreover, all the Defendant has lost is the right to contest the case by special motion to dismiss, not the right to assert any constitutional rights he may have. "Our Supreme Court has recognized rare circumstances where *Curcio's* second prong is satisfied, so as to permit interlocutory review of the denial of a motion to dismiss. Such review is available when the motion to dismiss is based on sovereign immunity; *Shay v. Rossi,* 253 Conn. 134, 164-65, 749 A.2d 1147 (2000), overruled in part on other grounds by *Miller v. Egan,* 265 Conn. 301, 325, 828 A.2d 549 (2003); double jeopardy; *State v. Tate,* 256 Conn. 262, 276, 773 A.2d 308 (2001); collateral estoppel; *Convalescent Center of Bloomfield, Inc. v. Dept. of Income Maintenance,* 208 Conn. 187, 194, 544 A.2d 604 (1988) (noting that collateral estoppel is civil law analogue to criminal law's double jeopardy); and ministerial immunity; *Dayner v. Archdiocese of Hartford,* 301 Conn. 759, 769-72, 23 A.3d 1192 (2011); *Harger v. Odlum*, 153 Conn. App. 764, 770 (2014). "In each of those situations, the party seeking dismissal demonstrated that a statutory or constitutional right not to litigate, which already was secured to that party, would have been irretrievably lost if the party were denied

the right to an immediate appeal." *Id.* Circumstances are rare "under which interlocutory review is permitted pursuant to Curcio's second prong." *Id.* In this case, the Defendants' claim for a right to an interlocutory appeal is based solely on the denial of his motion to dismiss as untimely. It is not an appeal regarding his substantive right. Rather than resulting in some cognizable harm to the Defendants, providing an interlocutory appeal to the denial of a special motion to dismiss pursuant to §52-196a would undermine the very interests intended to be served by the final judgment rule and *Curcio*. Here, the Defendant cannot make such a colorable claim because the statutory time period within which to move to dismiss expired, the motion cannot prevail. Conn. Gen. Stat. § 52-196a provides a very specific and limited right to challenge Plaintiff's action and seek interlocutory review. The Defendant did not avail himself of Conn. Gen. Stat. § 52-196a within the time period specifically granted by the legislature. Thus, only the right to file a special motion to dismiss is lost and seek interlocutory review. Defendant Miller's right to defend against the action and raise all the defenses is preserved for later in the litigation.

4. CONCLUSION

The denial of an untimely special motion to dismiss under Conn. Gen. Stat. §52-196a is not an appealable final judgment pursuant either to the text of the statute itself or under the second prong of *Curcio*. Accordingly, this appeal must be dismissed.

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CERTIFICATION

This is to certify that a copy of the foregoing was sent electronically or via certified mail, postage prepaid, on the date first inscribed on this document to all counsel and pro se parties of record, as follows:

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